

Jasbeer Kaur v. State of U.P.

Allahabad High Court · Division Bench · 24 March 2014 · WRIT - C No. 16866 of 2014 · **Writ disposed; EE to decide the Clause 4.9 application within one month.**

HEADNOTE

An occupier of a multi-storeyed flat whose builder-supplied electricity had been disconnected, and who had a pending civil dispute with the builder, was relegated to Clause 4.9 of the Electricity Supply Code, 2005. The Court did not decide the merits and directed the Executive Engineer to dispose of her application for an individual connection in accordance with law, preferably within one month.

FACTUAL SUMMARY

Jasbeer Kaur claimed to be the lawful occupier of a second-floor flat in Green Valley, Gopal Vihar Colony, Mahmoorganj, Varanasi (address later corrected to Flat No. 2, Block-II, Plot No. 36). A civil dispute with the builder was pending. The electricity connection the builder had provided was disconnected. She applied to the Power Corporation for a fresh individual connection and invoked writ jurisdiction when that grievance remained unredressed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

individual connection in multi-storeyed building

HOLDING

Without entering the merits, an occupier's claim to a fresh individual electricity connection in a multi-storeyed colony after disconnection of the builder-provided supply is to be redressed under Clause 4.9. The Court recited Clause 4.9(a) as permitting a person residing in such a plot or multi-storeyed building, multiplex, marriage hall, cooperative group housing society or colony, with load exceeding 25 kW, to apply for an individual connection, and directed the Executive Engineer to decide the pending application in accordance with law, preferably within one month. ¶ 4-5

PRINCIPLE TAGS

relegate-to-statutory-remedy An occupier of a multi-storeyed flat whose builder-supplied electricity had been disconnected, and who had a pending civil dispute with the builder, was relegated to Clause 4.9 of the Electricity Supply Code, 2005.. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ENTITLEMENT TO A FRESH CONNECTION

The Court expressly declined to enter the merits of the claim and only directed consideration under Clause 4.9. ¶ 4

NOT DECIDED — PENDING CIVIL DISPUTE BETWEEN THE PETITIONER AND THE BUILDER

Noticed but not adjudicated. ¶ 3